Chapter - 5

Crime against Women

Although women may be victims of any of the general crimes such as 'murder', 'robbery', 'cheating', etc. only the crimes which are directed specifically against women are characterised as 'crimes against women'. Various new legislations have been brought and amendments have been made in existing laws with a view to handle these crimes effectively. These are broadly classified under two categories.

(1) The crimes under the Indian Penal Code (IPC)

1. Rape (Sec. 376 IPC)
2. Attempt to commit rape (Sec 376/511 IPC)*
3. Kidnapping & abduction of women (Section 363,364,364A, 366 IPC)
   - 3.1 K&A under section 363 IPC*
   - 3.2 K&A in order to murder*
   - 3.3 K&A for ransom*
   - 3.4 K&A of women to compel her for marriage*
   - 3.5 K&A for other purposes*
4. Dowry deaths (Section 304B IPC)
5. Assault on woman with intent to outrage her modesty (Sec. 354 IPC)
   - 5.1 Sexual harassment (Sec.354A IPC)*
   - 5.2 Assault on woman with intent to outrage her modesty (Sec. 354C IPC)*
   - 5.3 Voyeurism (Sec. 354D IPC)*
   - 5.4 Others *
6. Insult to the modesty of women (Sec. 509 IPC)
   - 6.1 at office premises*
   - 6.2 at places related to work*
   - 6.3 in public transport*
   - 6.4 in other places*
7. Cruelty by husband or his relatives, (Sec. 498A IPC)
8. Importation of girl from foreign country (up to 21 years of age) (Sec. 366 B IPC)
9. Abetment of suicide of women (Sec. 306 IPC)*

'' collected for the first time in 2014*.

(2) The crimes under the Special & Local Laws (SLL)

Although all laws are not gender specific, the provisions of law affecting women significantly have been reviewed periodically and amendments carried out to keep pace with the emerging requirements. The gender specific laws for which crime statistics are recorded throughout the country are –

(i) The Dowry Prohibition Act, 1961
(ii) The Indecent Representation of Women (Prohibition) Act, 1986
(iii) The Commission of Sati Prevention Act, 1987
(iv) The Protection of women from domestic Violence Act, 2005*
(v) The Immoral Traffic (Prevention) Act, 1956#

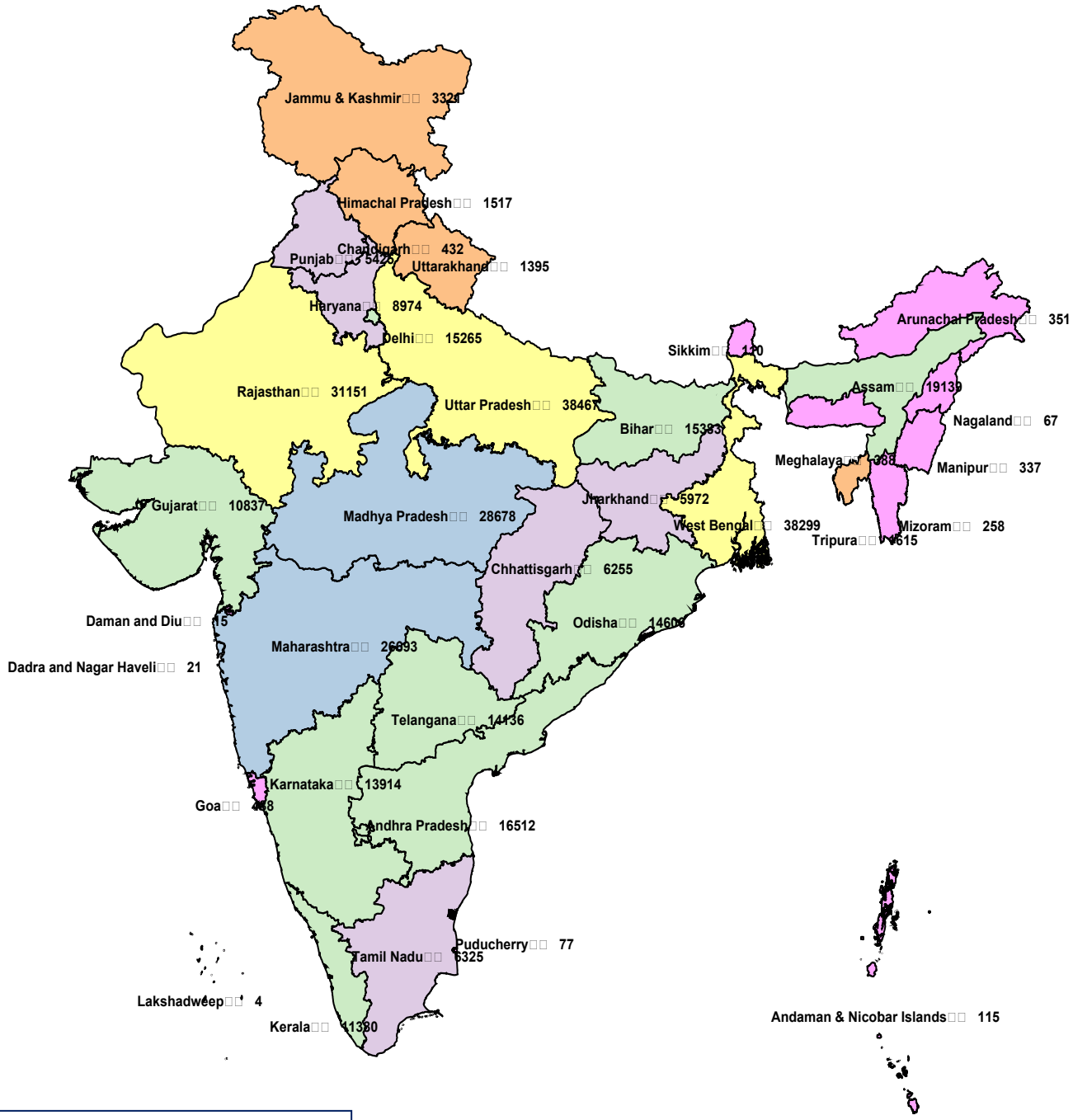
'#' women related crimes only.
'' collected for the first time in 2014*

Number of crime heads under crimes against women have increased from 11 in previous editions to 14 (as stated above) in this edition of the report. In previous edition, figures of the Immoral Traffic (P) Act were considered as part of crimes against women. However, in this edition, data pertaining to crimes committed on women only under this Act have been construed as a part of crime against women. Data have been collected under the revised proformae for '**Crime in India 2014**'.

Apart from above crime heads which are considered as crime against women, some general crimes in which women are victims have also been collected under the revised proformae. Data of the same is published on our website in '**Additional Tables for CII**'.

'**Crime rate**' for crimes committed against women has been calculated using only female population based on mid-year projected female population for the year 2014, as supplied by Registrar General of India/Population Commissioner, MHA.

INCIDENCE OF CRIME AGAINST WOMEN DURING 2014
(All India 3,37,922)



Incidence (No. of Cases)

- upto 1,000
- 1,001 to 5,000
- 5.001 to 10.000
- 10,001 to 20,000
- 20,001 to 30,000
- above 30,000

Map powered by DevInfo, UNICEF

Incidence of crimes

A total of 3,37,922 cases of crime against women (both under various sections of IPC and SLL) were reported in the country during the year 2014 as compared to 3,09,546 in the year 2013, thus showing an increase of 9.2% during the year 2014. These crimes have continuously increased during 2010 - 2014 with 2,13,585 cases reported in 2010, which increased to 2,28,649 cases in 2011, which further increased to 2,44,270 cases 2012 and 3,09,546 cases in 2013. In 2014, a total of 3,37,922 such cases were reported.

Uttar Pradesh with 16.8% share of country's women population has reported nearly 11.4% of total crimes committed against women at all India level, by reporting 38,467 cases and West Bengal accounting for nearly 7.5% of the country's women population, has accounted for 11.3% of total cases of crimes against women in the country by reporting 38,299 cases during the year 2014.

Crime rate

(Crime rate- 56.3)

The crime rate under crimes against women was reported as 56.3 in 2014. Delhi UT has reported the highest crime rate (169.1) compared to 56.3 at all India level during the year 2014, followed by Assam (123.4), Rajasthan (91.4), Tripura (88.0), West Bengal (85.4), Madhya Pradesh (79.0) and Telangana (78.3).

Trend analysis

The crime head-wise details of reported crimes during the year 2010 to year 2014 along with percentage variation are presented in **Table-5(A)**. The crime against women during

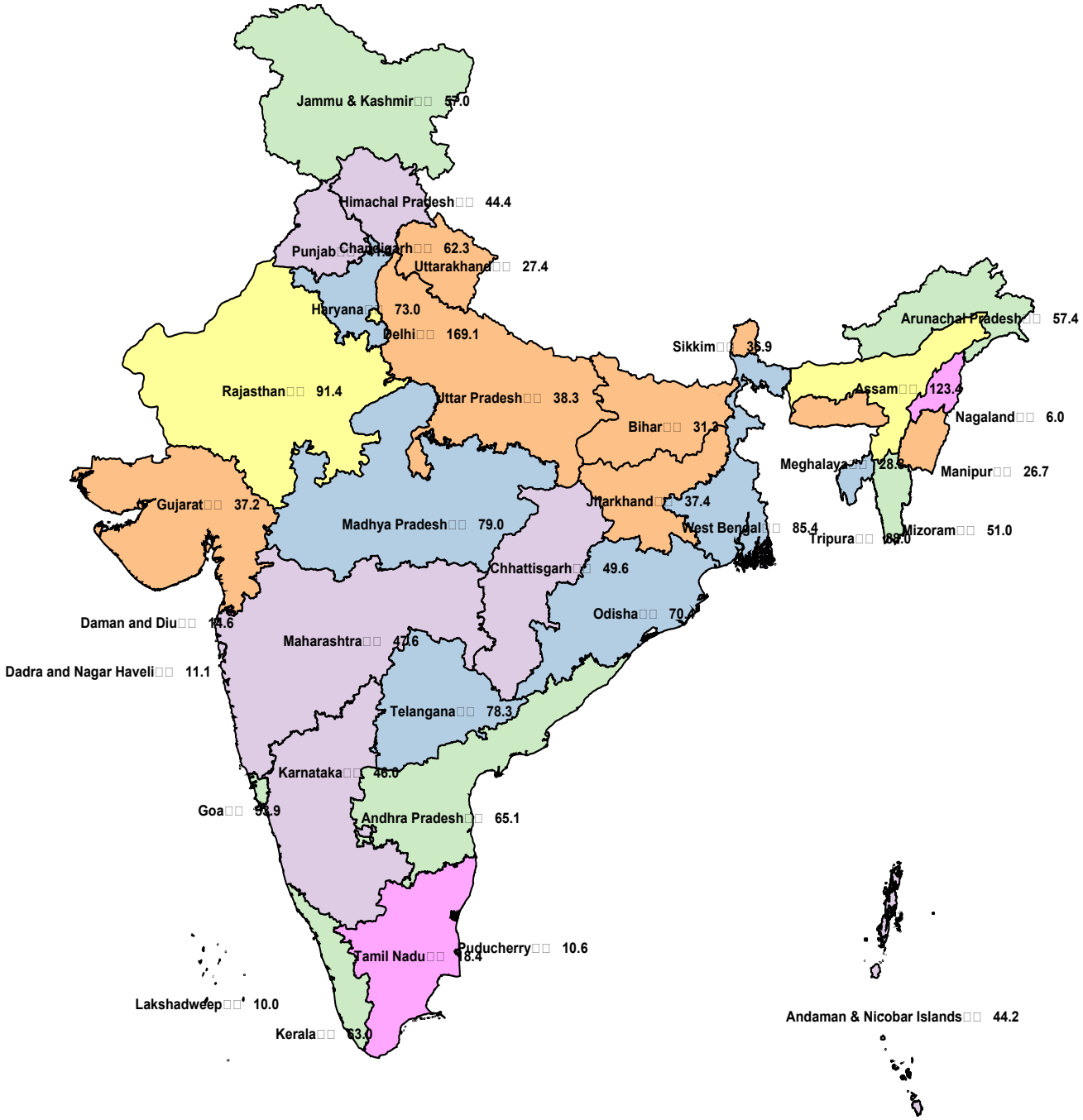
Table – 5(A)

Crime head-wise incidents of crime against women during 2010 - 2014 and percentage variation in 2014 over 2013

Sl. No.	Crime head	Year					Percentage variation in 2014 over 2013
		2010	2011	2012	2013	2014	
1	Rape	22,172	24,206	24,923	33,707	36,735	9.0
2	Attempt to commit rape*					4,234	-
3	Kidnapping & abduction of women	29,795	35,565	38,262	51,881	57,311	10.5
4	Dowry deaths	8,391	8,618	8,233	8,083	8,455	4.6
5	Assault on women with intent to outrage her/their modesty	40,613	42,968	45,351	70,739	82,235	16.3
6	Insult to the modesty of women	9,961	8,570	9,173	12,589	9,735	-22.7
7	Cruelty by husband or his relatives	94,041	99,135	1,06,527	1,18,866	1,22,877	3.4
8	Importation of girl from foreign country	36	80	59	31	13	-58.1
9	Abetment of suicide of women					3,734	
A.	**Total IPC crime against women**	**2,05,009**	**2,19,142**	**2,32,528**	**2,95,896**	**3,25,329**	9.9
10	Commission of Sati Prevention Act	0	0	0	0	0	
11	Indecent Representation of Women (P) Act	895	453	141	362	47	-87.0
12	The Dowry Prohibition Act	5,182	6,619	9,038	10,709	10,050	-6.2
13	Protection of women from domestic violence Act*					426	-
14	Immoral Traffic (Prevention) Act#	2,499	2,436	2,563	2,579	2,070#	-
B.	**Total SLL crime against women**	**8,576**	**9,508**	**11,742**	**13,650**	**12,593**	-7.7
	Total(A+B)	**2,13,585**	**2,28,650**	**2,44,270**	**3,09,546**	**3,37,922**	9.2

'*'Newly included crime head; '#' Modification in data in 2014, as figures refer to women related crimes only.

RATE OF CRIME AGAINST WOMEN DURING 2014
(All India 56.3)



Rate of Crime

- upto 20.0
- 20.1 to 40.0
- 40.1 to 50.0
- 50.1 to 70.0
- 70.1 to 90.0
- above 90.0

Note:
Rate of Crime against Women means number of crimes against women per one lakh population of Women.

Map powered by DevInfo, UNICEF

the year 2014 has increased by 9.2% over the year 2013 and by 58.2% over the year 2010. The IPC component of crimes against women has accounted for 96.3% of total crimes and the remaining 3.7% were SLL crimes against women.

The proportion of IPC crimes committed against women towards total IPC crimes has increased during last 5 years from 9.6% in the year 2010 to 11.4% during the year 2014 [**Table 5(B)].**

Table - 5(B)
Proportion of crime against women (IPC) towards total IPC crimes

Sl. No.	Year	Total IPC Crimes	Crime Against women (IPC cases)	Percentage to total IPC crimes
1	2010	22,24,831	2,13,585	9.6%
2	2011	23,25,575	2,19,142	9.4%
3	2012	23,87,188	2,44,270	10.2%
4	2013	26,47,722	2,95,896	11.2%
5	2014*	28,51,563	3,25,327	11.4%

'*'Number of crime heads have also increased from 11 to 14 in 2014 .

Crime head-wise analysis (IPC)

Rape (Sec. 376 IPC)

(Incidence- 36,735 Rate- 6.1)

A total of 36,735 cases of rape under section 376 IPC were reported during 2014 (excluding the Protection of Children from Sexual Offences Act, 2012). An increasing trend in the incidence of rape has been observed during the periods 2010 - 2014. These cases have shown an increase of 9.2% in the year 2011(24,206 cases) over the year 2010 (22,172 cases), an increase of 3.0% in the year 2012 (24,923 cases) over 2011, with further increase of 35.2% in the year 2013 (33,707 cases) over 2012 and 9.0% in 2014 (36,735 cases) over 2013. 14.0% of rape cases were reported in Madhya Pradesh (5,076 out of 36,735 cases) followed by Rajasthan (3,759 cases), Uttar Pradesh (3,467 cases), Maharashtra (3,438 cases). Mizoram reported the highest crime rate of 23.7 followed by UT of Delhi at 23.2 as compared to national average of 6.1.

Incest rape

(Incidence: 674 Victims 713)

Incidents of incest rape (rape by blood relation like father, brother etc.) in the country have increased by 25.7% during 2014 over the previous year (from 536 cases in 2013 to 674 cases in 2014). Delhi UT (140 cases with 144 victims) has reported the highest such incidence followed by Maharashtra (94 cases with 102 victims) and Kerala (62 cases with 63 victims). There were 713 victims for 674 reported incest rape cases in the country during the year 2014.

29.6% of the total victims of incest were from the age group of 12 – below 16 years (211 victims) followed by 28.5% in age group 18-30 years (203 victims), 16.1% in age group 16-below 18 years (115 victims), 11.8% in age group 6-below 12 years (84 victims), 9.0% in age group 30-below 45 years (64 victims), 3.2% in age group below 6 years (23 victims), 1.0% in age group 45-below 60 years (7 victims) and 0.8% in age group of above 60 years (6 victims). Thus 89.2% of total incest rape victims were children (below 18 years) (636 out of 713 victims). Some States have not furnished data on children rape reported under the Protection of Children from Sexual Offences Act, 2012, the figures of the same have been given in **Chapter-6** separately.

A total of 36,739 cases were registered for 36,968 victims under 'other than incest rapes' during 2014. Madhya Pradesh has accounted for maximum such cases by reporting 5,017 cases followed by 3,700 cases in Rajasthan and 3,416 cases in Uttar Pradesh during 2014. Maximum such victims were from the age group of 18-30 years (16,317 victims). Age group wise details of victims of rape including incest rape is given in **Table-5.3**.

Out of 37,413 rape cases, in 32,187 cases the offenders were known to the victims accounting for 86.0% of total rape cases during 2014. 16 out of 36 States/UTs have reported more than 90% of such cases. Apart from 674 incest rape cases, in 966 cases victims were raped by close family members and in 2,217 cases victims were raped by her relatives. A total of 8,344 cases were reported in which victims were raped by her neighbours, maximum such cases were reported in Madhya Pradesh (1,351 cases), Uttar Pradesh (1,111 cases), Rajasthan (860 cases) and Maharashtra (714 cases) and these four States accounted for 48.4% of total such cases. In 618 cases employers/co-workers have rape their female employees or colleagues.

Barring North-Eastern States, in Bihar (52.8%) and West Bengal (58.9%) majority of rapes were committed by unknown persons therefore require more safety measures.

Custodial Rape
(Incidence: 197 Rate- negligible)

Custodial rape viz. rape under custody of police, of hospital, judicial custody etc. has been added for the first time in this report, earlier data on rape under police custody only was collected. It has been further sub categorized as custodial gang rape and other custodial rape.

Out of 36,735 total rape cases in the country, 197 cases were reported as custodial rapes during the year 2014. Highest number of custodial rape cases were reported in Uttar Pradesh (189 cases consisting of 5 cases of Gang rape and 184 cases of other custodial rapes) followed by Arunachal Pradesh (4 cases of custodial rape other than gang rape), Rajasthan (3 cases consisting of 2 cases of custodial gang rape and 1 case of other custodial rape) and Puducherry (1 case of custodial rape other than gang rape) during 2014 [**Table 5.2].**

There were 36,975 victims of custodial rapes for 36,735 reported rape cases in the country during the year 2014.

Rape other than custodial rape
(Incidence: 36,538 Rate- 6.1)

Out of 36,735 total rape cases in the country, 36,538 cases were reported as other than custodial rapes during the year 2014. Rape other than custodial rape has been further sub-categorized as gang rape and other rape. Out of 36,538 rape cases (other than custodial rape cases) in the country, 2,346 cases were reported as gang rape cases and 34,192 cases were reported under other rape cases.

Maximum rape cases (other than custodial rape cases) were reported in Madhya Pradesh (5,076 cases, consisting of 284 gang rape cases and 4,792 other rape cases), followed by Rajasthan with 3,756 such cases (consisting of 414 gang rape cases and 3,342 other rape cases) and Maharashtra 3,438 (consisting of 126 gang rape cases and 3,312 other rape cases).

Maximum incidents of gang rape cases were reported in Uttar Pradesh by registering 762 cases (consisting of 189 custodial gang rape cases and 573 other than custodial gang rape cases) followed by Rajasthan with 417 cases (consisting of 3 custodial gang rape cases and 414 other than custodial gang rape cases) [**Table 5.2].**

Attempt to commit rape
(Incidence: 4,234 Rate- 0.7)

Attempt to commit rape has been added for the first time in this report. A total of 4,234 cases were reported under attempt to commit rape during 2014. Maximum number of such cases were reported from West Bengal (1,656 cases) followed by Bihar (484 cases), Rajasthan (373 cases) and Uttar Pradesh (324 cases) [**Table 5.2].**

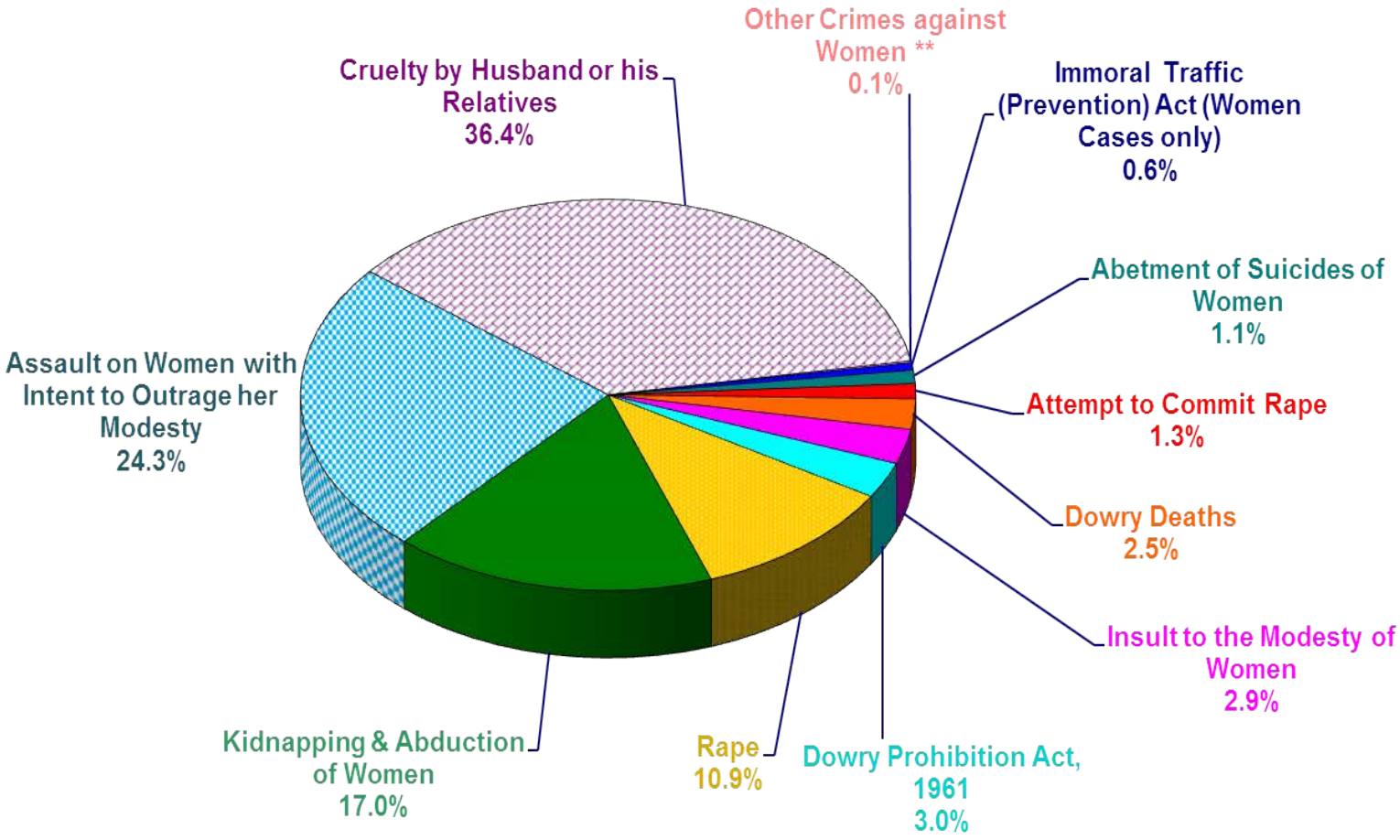
Kidnapping & abduction
(Incidence: 57,311 Rate- 9.6)

A total of 57,311 cases were reported under kidnapping & abduction of women during 2014. These cases have shown an increase of 10.5% during 2014 over the previous year 2013 (from 51,881 cases in 2013 to 57,311 cases in 2014). Uttar Pradesh with 10,628 cases of kidnapping & abduction has accounted for 18.5% of the total such cases during2014. Delhi UT has reported the highest crime rate at 44.7 compared to the national average of 9.6.

Out of 57,311 cases of kidnapping & abduction, maximum number of cases of kidnapping & abduction of women were reported for marriage purposes (30,874 cases)

Crime Against Women Percentage Distribution during 2014

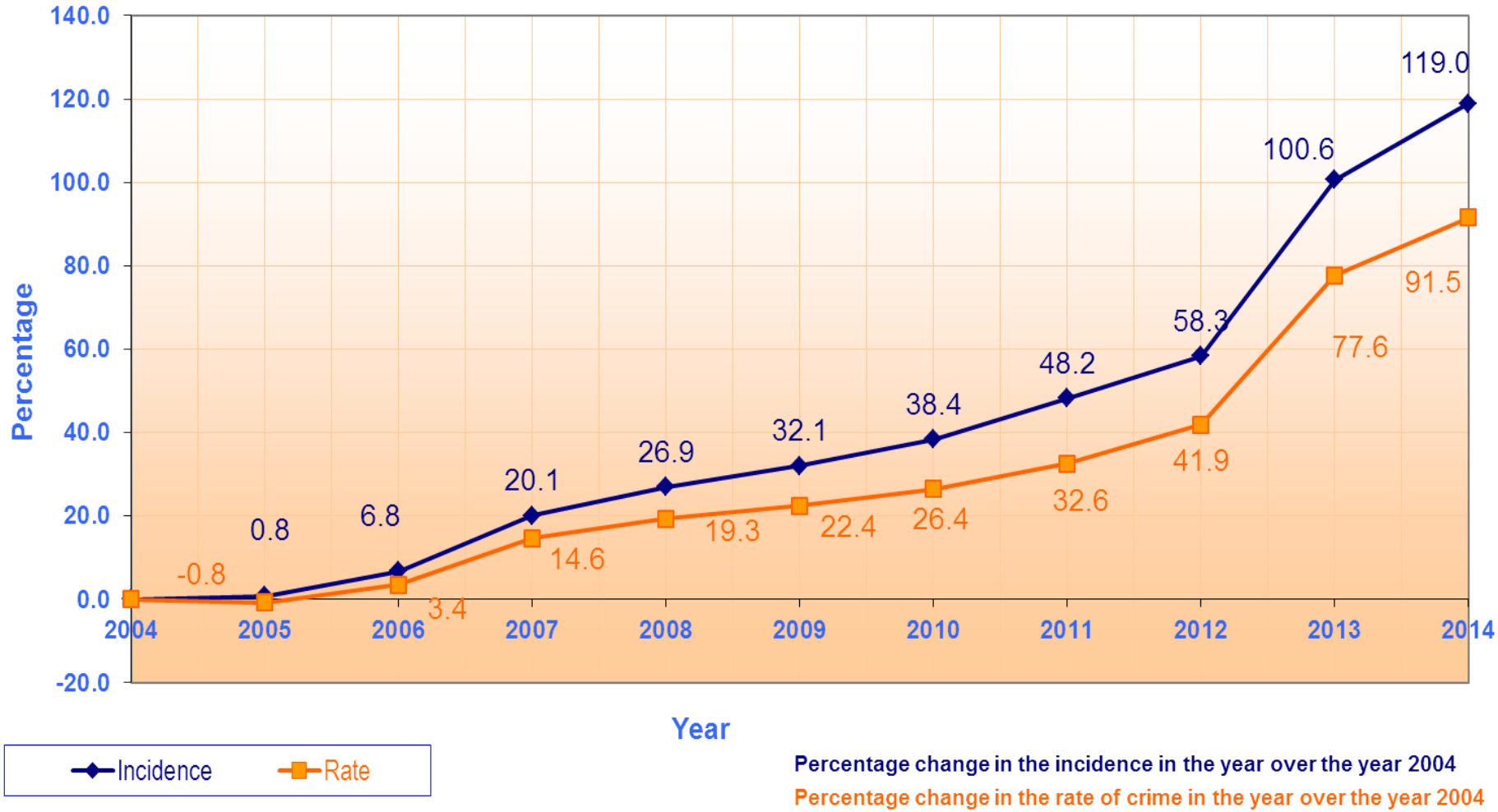
Figure 5.1



** The offences viz. Importation of Girls from Foreign Country, Indecent Representation of Women (Prohibition) Act, 1986, Commission of Sati Prevention Act 1987, Protection of Women from Domestic Violence Act 2005 altogether have been shown as Other crimes against women

Incidence & Rate of Crime Against Women
Percentage Change from 2014

Figure 5.2



Percentage change in the incidence in the year over the year 2004

Percentage change in the rate of crime in the year over the year 2004

which accounted for 53.9% of total such cases during 2014. A total of 58,492 victims for 57,311 registered cases of kidnapping & abduction were reported in the country during the year 2014. Maximum number of cases of kidnapping & abduction of women for marriage purposes were reported in Uttar Pradesh (7,338 cases) followed by Bihar (4,641 cases) and Assam (3,883 cases) during 2014.

Dowry Deaths

(Incidence: 8,455 Rate- 1.4)

The cases of dowry deaths have increased by 4.6% during the year 2014 over the previous year (8,033 cases). A total of 8,501 victims were reported under 8,455 dowry deaths cases in the country during the year 2014.

29.2% of the total cases of dowry deaths were reported in Uttar Pradesh (2,469 cases) alone followed by Bihar (1,373 cases). The highest crime rate in respect of dowry deaths was reported in Bihar (2.8) followed by Uttar Pradesh (2.5) as compared to the national average of 1.4.

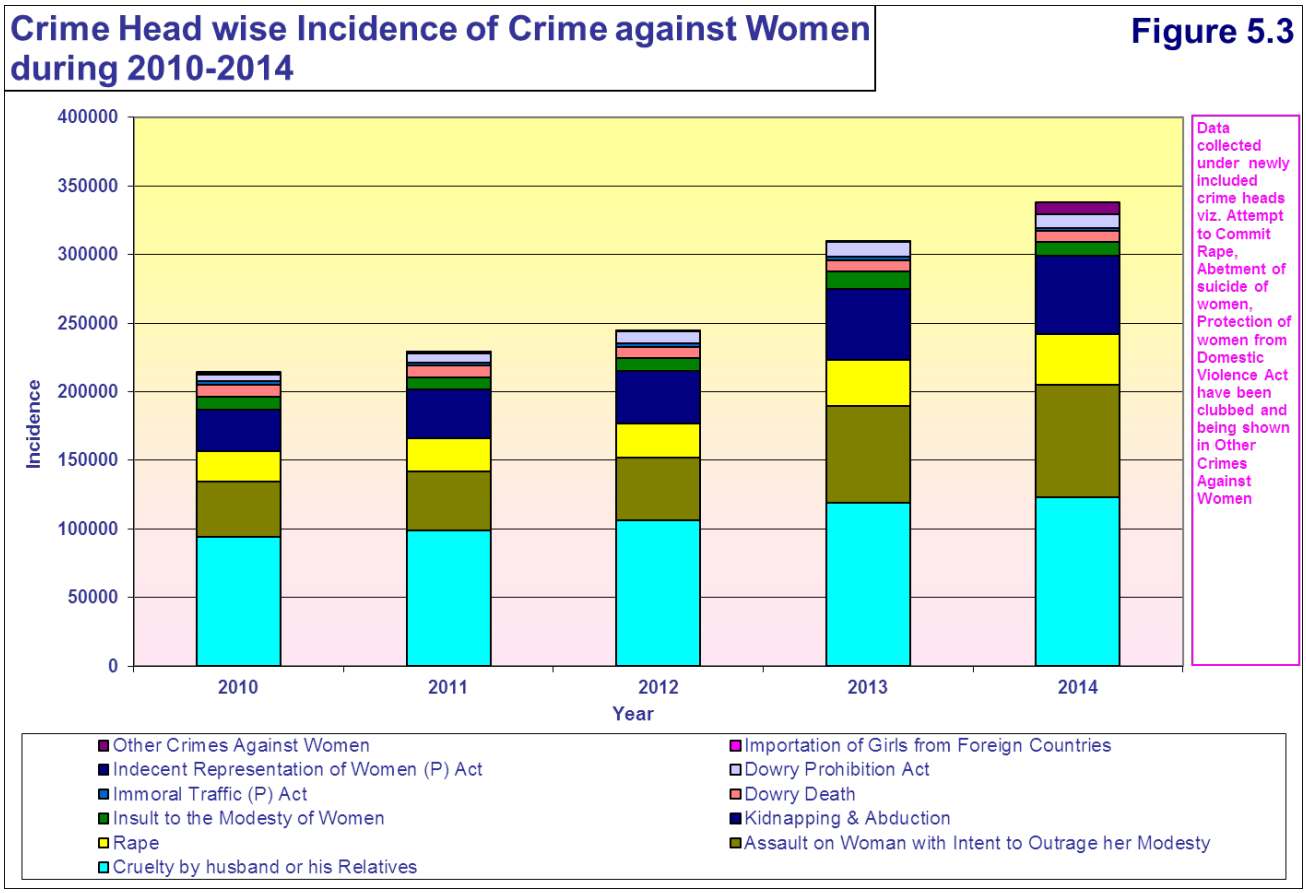
Assault on women with intent to outrage her modesty

(Incidence: 82,235 Rate- 13.7)

Incidents of assault on women with intent to outrage her modesty in the country have increased by 16.3% during 2014 over the previous year (from 70,739 cases in 2013 to 82,235 cases in 2014). Maharashtra (10,001 cases) has reported the highest incidence of such crimes followed by Madhya Pradesh (9,609 cases) and Uttar Pradesh (8,605 cases). Delhi UT has reported the highest crime rate of assault on women with intent to outrage her modesty cases (47.9) as compared to the national average of 13.7. A total of 82,620 victims were reported under 82,235 cases of assault on woman with intent to outrage her modesty cases in the country during the year 2014.

Data on sexual harassment under section 354A IPC is collected separately for the first time in 2014. A total of 21,938 cases were registered under sexual harassment during 2014. Maximum cases under sexual harassment were registered in Uttar Pradesh (4,435 cases) followed by Maharashtra (4,052

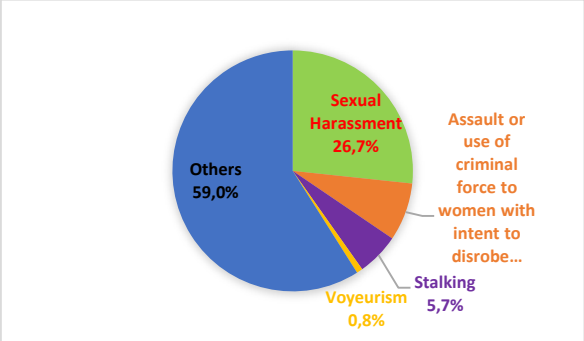
Crime Head wise Incidence of Crime against Women during 2010-2014 — **Figure 5.3**



cases) and Madhya Pradesh (3,163 cases).

Data on assault or use of criminal force to women with intent to disrobe (section 354B IPC) is collected separately for the first time in 2014. A total of 6,412 cases were registered under this crime head. Maximum cases under assault or use of criminal force to women with intent to disrobe were registered in Odisha (1,142 cases) followed by Uttar Pradesh (1,066 cases).

Chart 5(A): Distribution of sub crime heads of assault on women with intent to outrage her modesty during 2014



Data on Voyeurism and Stalking have also been collected separately for the first time in 2014. A total of 674 cases of voyeurism and 4,699 cases of stalking were reported in the country during the year 2014.

Insult to the modesty of women
(Incidence: 9,735 Rate- 1.6)

The incidents of insult to the modesty of women have decreased by 29.3% during 2014 over the previous year (12,589 cases). Andhra Pradesh has highest cases of insult to the modesty of women (2,649 cases) followed by Maharashtra (1,575 cases) of total such cases reported during the year 2014. Delhi UT has reported the highest crime rate at 15.1 followed by Andhra Pradesh (10.5) as compared to the national average of 1.6.

Out of 9,735 cases of insult to the modesty of women, 57 such cases occurred at office premises, 469 such cases at other places related to work, 121 such cases in public transports and 9,088 such cases at other places during 2014. Most of the cases of insult to the modesty of women at office premises were reported in Delhi (11 cases) and Maharashtra (10 cases). Andhra Pradesh (65 cases) followed by Kerala (11 cases) and Maharashtra, West Bengal & Delhi (8 cases each) have reported maximum incidents of insult to the modesty of women in public transport.

Cruelty by husband or his relatives
(Incidence: 1,22, 877 Rate-20.5)

The cases of Cruelty by husband or his relatives in the country have increased by 3.4% during 2014 over the previous year (1,18,866 cases). Most of these cases were reported in West Bengal (23,278 cases) followed by Rajasthan (15,905 cases), Uttar Pradesh (10,471 cases) and Assam (9,626 cases), these four States together accounted for 48.2% of total such cases (59,280 out of 1,22,877 cases). The highest crime rate (62.1) was reported from Assam as compared to the national rate at 20.5.

Importation of girls from foreign country
(Incidence: 13 Rate: Negligible)

A decline of 58.1% has been observed in cases registered under this crime head in 2014 over 2013 (31 cases). Bihar (5 cases) and West Bengal (4 cases) reported the highest incidents of such crimes during 2014.

Abetment of suicide of women
(Incidence: 3,734 Rate- 0.6)

Data on abetment of suicide of women is collected separately for the first time in 2014. A total of 3,734 cases of abetment of suicides of women were reported during the year. Maximum such cases were registered in Maharashtra (986 cases) followed by Telangana (627 cases) and Madhya Pradesh (455 cases) during 2014.

SLL Crime-head wise analysis

Dowry Prohibition Act
(Incidence: 10,050 Rate-1.7)

The cases registered under this Act have decreased by 6.2% during the year 2014 as compared to the previous year (10,709 cases). Maximum such cases were reported in Bihar (2,203 cases) followed by Uttar Pradesh (2,133 cases), Karnataka (1,730 cases) and Jharkhand (1,538 cases). The highest crime rate (9.6) was reported from Jharkhand as compared to 1.7 at the national level.

Indecent Representation of Women (Prohibition) Act

(Incidence: 47 Rate: Negligible)

A decline of 87.0% was noticed in this crime head during the year 2014 as compared to the previous year (362 cases). Rajasthan reported maximum cases (18 cases out of 47 cases) with crime rate of 0.1.

Commission of Sati Prevention Act

Like previous years, no case under the Commission of Sati Prevention Act was registered during the year 2014.

Protection of Women from Domestic Violence Act

(Incidence: 426 Rate- 0.1)

Data on Protection of Women from Domestic Violence Act, 2005 has been collected for the first time in 2014. A total of 426 cases were reported under this Act during 2014. Kerala (140 cases) followed by Bihar (112 cases), Uttar Pradesh (66 cases), Madhya Pradesh (53 cases) and Rajasthan (17 cases) have reported the maximum such cases during 2014, these four States together accounted for 91.1% of total such cases reported in the country during 2014.

Immoral Traffic (Prevention) Act

(Incidence-2,070 Rate- 0.3)

Unlike previous years report, data on incidents of the immoral traffic (P) Act refer to crimes perpetrated on women only whereas in previous reports cases reported under IT(P) Act were considered as part of crime against women.

The highest number of cases under the Immoral Traffic (P) Act were reported in Tamil Nadu (471 cases out of 2,070 cases) accounting for 22.8% of total such cases followed by Karnataka (388 cases), Andhra Pradesh (204 cases), Maharashtra (202 cases) and Telangana (192 cases). Daman & Diu UT has reported the highest crime rate of 7.8 as compared to the national average of 0.3.

Out of 2,070 cases reported under the Immoral Traffic (Prevention) Act, 605 cases under section 5 (procuring, inducing or taking persons for prostitution), 81 cases under section 6 (detaining of persons in premises where prostitution is carries on), 120 cases under section 7 (prostitution in vicinity of public places), 104 cases under section 8 (seducing or soliciting for the purposes of prostitution) and 1,160 cases under other sections of the Immoral Traffic (P) Act were reported during 2014. Southern States Kerala (48 cases), Karnataka (21 cases) and Tamil Nadu (19 cases) have reported maximum cases of seducing or soliciting for the purposes of prostitution, these three States together accounted for 84.6% of total such cases reported in the country (88 out of 104 cases) during 2014.

Disposal of crimes reported under crime against women by police

There were 4,61,609 cases (consisting of 3,37,922 cases reported during 2014 and 1,23,687 cases pending investigation from previous years) for investigation during the year 2014. Out of these cases, police completed investigation in 3,15,722 cases during 2014. A total of 8,144 cases of cruelty by husband or his relatives, 6,497 cases of kidnapping & abduction of women, 4,641 cases of assault on women with intent to outrage her modesty and 2,540 cases of rape were such cases in which final report were submitted by police showing the cases as false. In 25,040 cases charge-sheets were not laid but final reports were submitted showing as true cases by police during 2014.

Out of 3,15,722 cases disposed of by police, charge-sheets were submitted in 2,52,682 cases showing charge-sheeting rate of 91.0. More than 90.0% of chargesheet were in cases in abetment of suicides of women (92.5) and cases under the Immoral Traffic (P) Act (98.4) on the other hand low chargesheets were observed under cases of kidnapping & abduction of women. A total of 1,44,938 cases remained pending for investigation at the end of the year 2014, showing pendency rate of 31.4 [**Table 5.5**].

Disposal of crimes reported under crime against women by courts

There were 11,23,423 cases (consisting of 87,43,388 cases pending trials from previous years and 2,52,682 cases sent for trial during the year) were for trial during the year.

A total of 26,660 cases were convicted during the year 2014, showing a conviction rate of 21.3. Highest conviction rate was observed under the Immoral Traffic (P) Act (48.6)(75.7 under section 8 of this Act) and the Indecent Representation of Women(P) Act (46.7) whereas low conviction rate was observed in case under the Dowry Prohibition Act (10.2) and cruelty by husband or relatives (13.7). A total of 9,82,516 cases remained pending for trial at the end of the year 2014. [**Table 5.6]**

Disposal of person arrested by police & Court

A total 5,12,980 persons (consisting of 4,51,299 males and 61,681 females) were arrested under crime against women during the year. A total of 46,916 persons were released or freed by police or Magistrate before trial for want of evidence or any other reason. A total of 4,33,017 persons (consisting of 3,79,859 males and 53,158 females) were charge-sheeted during the year 2014. Maximum persons chargesheeted for offences of cruelty by husband or his relatives (1,96,893 persons) and assault on women with intent to outrage her modesty (92,615 persons) [**Table 5.7].**

A total of 19,56,693 persons (consisting of 17,68,350 males and 1,88,334 females) were either under custody or on bail for trial, out of which 47,145 persons were convicted by courts. A total of 1,83,983 persons were acquitted from all charges by courts and 9,032 persons were discharged by court for want of evidences or otherwise during 2014.

Against 6,637 persons convicted, 16,575 persons were acquitted and 487 persons discharged by courts in rape cases during 2014. This similar patterns can be observed in other crimes also under crime against women. Besides, cases were compounded against 19,382 persons and cases withdrawn against 3,361 persons during 2014. Trials were completed for 2,40,160 persons by courts and trials remained pending for 16,93,790 persons (either on bail or on custody) at the end of the year 2104 [**Table-5.8].**